



# ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session*

*Majority Research Staff*

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**SB 1199: veterinary medical examining board; continuation**

## **REIM FLOOR AMENDMENT**

1. Clarifies that prohibited actions taken against the Salt River horse herd must be intentional and also apply to horses that were previously part of the herd.
2. Prescribes actions relating to the transfer and adoption of unidentified horses that are not part of the Salt River horse herd.
3. Requires the Arizona Department of Agriculture (Department) to:
  - a. maintain a genetically viable herd consistent with current standards and peer reviewed studies; and
  - b. to make publicly available, via the Department's website, all genetic assessment data and their corresponding scientific studies.
4. Outlines requirements of the Department and any contractor as it relates to genetic assessments and herd management.
5. Repeals the section relating to outlined requirements on July 1, 2030.
6. Adds a legislative findings clause.
7. Adds an emergency clause.
8. Makes conforming changes.

REIM FLOOR AMENDMENT  
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1199  
(Reference to LAND, AGRICULTURE & RURAL AFFAIRS S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 3-1491, Arizona Revised Statutes, is amended to  
3 read:

4 3-1491. Salt River horse herd; necessary interaction; written  
5 authorization; violations; classification;  
6 definitions

7 A. A person shall not [INTENTIONALLY] harass, shoot, injure, kill  
8 or slaughter a horse that is [OR WAS] part of the Salt River horse herd.

9 B. A person shall not interfere with, take, chase, capture or  
10 euthanize a horse that is part of the Salt River horse herd without  
11 written authorization from either the department or the county  
12 sheriff. The department or the county sheriff may provide written  
13 authorization pursuant to this subsection only for humane purposes.

14 C. If an incident occurs that requires interaction with the Salt  
15 River horse herd in order to protect the safety or health of a horse that  
16 is or horses that are part of the Salt River horse herd or the public, a  
17 private or public entity may address the incident after obtaining written  
18 authorization from either the department or the county sheriff.

19 D. If a horse has any brand or other mark that indicates ownership,  
20 the department shall attempt to prove ownership of the horse or the county  
21 sheriff shall contact the department to attempt to establish ownership of  
22 the horse. If the department cannot prove ownership of the horse [AND THE  
23 HORSE IS NOT IDENTIFIED AS PART OF THE SALT RIVER HORSE HERD], the  
24 department or the county sheriff may provide written authorization  
25 pursuant to this section [TO REMOVE AND TRANSFER THE UNIDENTIFIED HORSE TO  
26 A PRIVATE ENTITY THAT HAS A VALID AGREEMENT WITH THIS STATE TO ADDRESS  
27 ISSUES RELATING TO THE SALT RIVER HORSE HERD AND THAT MAY ADOPT OUT THE  
28 UNIDENTIFIED HORSE THROUGH AN ADOPTION CONTRACT].

1 E. This state shall enter into an agreement pursuant to section  
2 11-952 with the United States forest service to implement this article or  
3 to address any issue relating to the Salt River horse herd. ~~THE~~  
4 ~~DEPARTMENT SHALL POST THE AGREEMENT ON ITS WEBSITE.~~

5 F. This state may enter into an agreement with a private entity to  
6 address any issue relating to the Salt River horse herd. [THIS STATE  
7 SHALL GIVE PREFERENCE TO AN ENTITY THAT HAS A PROVEN RECORD AND EXPERIENCE  
8 ADDRESSING ISSUES RELATING TO THE SALT RIVER HORSE HERD. THE DEPARTMENT  
9 SHALL POST THE AGREEMENT ON THE DEPARTMENT'S WEBSITE.

10 G. THE DEPARTMENT SHALL MAINTAIN A GENETICALLY VIABLE SALT RIVER  
11 HORSE HERD CONSISTENT WITH GENETIC VIABILITY STANDARDS AND PEER REVIEWED  
12 STUDIES AS THEY EVOLVE AND BECOME AVAILABLE. THE DEPARTMENT SHALL MAKE  
13 PUBLICLY AVAILABLE ON THE DEPARTMENT'S WEBSITE ALL GENETIC ASSESSMENT DATA  
14 AND ALL CORRESPONDING SCIENTIFIC STUDIES ON WHICH THE ASSESSMENT RELIES.]

15 ~~[G.]~~ [H.] A horse that is part of the Salt River horse herd is not  
16 a stray animal as defined in section 3-1401 and is not subject to sections  
17 3-1371 and 3-1402.

18 ~~[H.]~~ [I.] A person who violates subsection A of this section is  
19 guilty of a class 1 misdemeanor. [A PERSON WHO VIOLATES SUBSECTION B OF  
20 THIS SECTION IS GUILTY OF A PETTY OFFENSE.]

21 ~~[I.]~~ [J.] For the purposes of this section~~[I.]~~ ~~[J.]~~

22 [1. "INTERFERE WITH" INCLUDES:

23 (a) APPROACHING A HORSE THAT IS PART OF THE SALT RIVER HORSE HERD  
24 AT A DISTANCE OF LESS THAN FIFTY FEET WHILE A HORSE THAT IS PART OF THE  
25 SALT RIVER HORSE HERD IS PRESENT.

26 (b) APPROACHING AN AUTHORIZED SALT RIVER HORSE HERD FEEDING STATION  
27 AT A DISTANCE OF LESS THAN FIFTY FEET.

28 2.] "Salt River horse herd" includes the horses that inhabit and  
29 that have historically lived in and around the lower Salt River and  
30 Saguaro Lake areas in the Tonto national forest and that do not have a  
31 brand or other mark that indicates ownership."

32 <<Sec. 2. Salt River horse herd; management agreement;  
33 genetic study; moratorium on removal; delayed  
34 repeal; definition

35 [A. The Arizona department of agriculture shall contract for an  
36 independent genetic assessment of the Salt River horse herd. The testing  
37 shall employ generally accepted genetic analysis methodologies that  
38 include measures of effective population size, allelic diversity and  
39 inbreeding coefficients.

40 B. The Arizona department of agriculture shall award the contract  
41 for genetic testing consistent with the competitive bidding process  
42 prescribed in title 41, chapter 23, Arizona Revised Statutes, with  
43 preference given to providers with a demonstrated expertise in equine  
44 genetics.

45 C. Notwithstanding section 3-1491, Arizona Revised Statutes, as  
46 amended by this act, a private entity that has entered into a contract  
47 with this state to address any issues relating to the Salt River horse  
48 herd may not do either of the following:

1       1. Remove any horse that is part of the Salt River horse herd if  
2 the herd maintains a negative growth rate unless removal is necessary to  
3 prevent or alleviate the suffering of an individually assessed horse and  
4 not for population control.

5       2. Employ fertility control and population control measures other  
6 than nonhormonal fertility control vaccines that preserve the mare's  
7 natural reproductive cycle and natural behavior.

8       D. Notwithstanding section 3-1491, Arizona Revised Statutes, as  
9 amended by this act, the Arizona department of agriculture may not enter  
10 into any new agreement with a private entity to address any issue relating  
11 to the Salt River horse herd that includes an obligation to remove horses  
12 that are part of the Salt River horse herd from the herd.

13       E. This section does not impair any obligations that this state  
14 incurred through an agreement between this state and the United States  
15 forest service before the effective date of this act.

16       F. This section is repealed from and after June 30, 2029.

17       G. For the purposes of this section, "Salt River horse herd" has  
18 the same meaning prescribed in section 3-1491, Arizona Revised Statutes,  
19 as amended by this act.]]>>

20       <<Sec. 3. Legislative findings

21       [The legislature finds that the delayed repeal of section 2 of this  
22 act provides sufficient time to contract for a comprehensive, scientific  
23 genetic assessment of the Salt River horse herd.]

24       <<Sec. 4. Emergency

25       [This act is an emergency measure that is necessary to preserve the  
26 public peace, health or safety and is operative immediately as provided by  
27 law.]]>>

28 Enroll and engross to conform

29 Amend title to conform

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